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on behalf of the “Security Researchers”

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Re: Docket No. 2015-8 - Section 1201 Study: Request for Additional Comments

In Section II (2)(a) of the above-referenced Federal Register Notice of Inquiry, the Copyright Office has requested comment regarding whether the language of the security research exemption recommended by the Register and adopted by the Librarian of Congress in the 2015 rulemaking would be appropriate for adoption as a permanent exemption.

As proponents of the exemption during the 2015 rulemaking, the Security Researchers believe that the language of the granted exemption is suitable for adoption as a permanent exemption. We believe that the language of the exemption as granted materially mitigates the legal uncertainty associated with good-faith security research. A permanent exemption with this language would further buttress security researchers’ ability to engage in good-faith testing, investigation and/or correction of security flaws and vulnerabilities aimed at consumer protection and national security enhancement. We support the adoption of the exemption language as granted for the language of a permanent security research exemption.